

▶ DELHI

GYMKHANA LOOKS AT A CLOSED SIGN

The Delhi Gymkhana Club, one of the capital's most exclusive institutions, stares at an uncertain future as the Centre moves in to reclaim the Lutyens property

By **Avishek G. Dastidar**

OF ALL THE MARKERS OF THE RAJ-ERA in the national capital, the Delhi Gymkhana Club is probably the most quaintly elite relic. Established in 1913 as the Imperial Gymkhana Club to serve the British official class gentry, the membership smoothly transitioned to the cream of India's civil, judicial and defence services after Independence. Decades passed by in indulgence, but now the vaunted address—2, Safdarjung Road—in the heart of Lutyens' Delhi is facing an existential crisis.

On May 26, the Delhi High Court heard the first challenge to the eviction notice issued by the central government, with Justice Avneesh Jhingan refusing to grant a stay against the order. The only guarantee the club got from the government side was that "it will not take possession except in accordance with law", so fears of a coercive eviction on June 5, the original date fixed by the Centre, were temporarily rested.

Senior counsel Kapil Sibal, appearing for the club's last elected body, termed the government's notice "an anathema" and contended that the contentious Clause 4 of the original 1928 perpetual lease deed—giving the lessor (now the government) the right to reclaim the land for public purposes—was unconstitutional. "This can't happen now, with the Constitution in force," he said. The court was not impressed.

SEEDS OF THE CONFLICT

The May 22 notice from the Land and Development Office (L&DO) of the Union ministry of housing and urban affairs, asking the club to vacate the premises by June 5, is only the latest of its troubles. Among the L&DO's stated reasons for taking over the 27.3-acre property was that it was needed to strengthen the "national defence infrastructure" and public security needs. The club lies adjacent to the prime minister's residence—7, Lok Kalyan Marg.

The Delhi Gymkhana Club, renamed thus in 1959, has been in and out of the news since 2017. The Union ministry of corporate affairs (MCA) was the first to get on its case, claiming the club was riddled with membership manipulation and '*parivarvaad* (nepotism)' in its managing committee. A red-flagged practice: the unofficial 'green cards' system—a non-member UCP, or User of Club Premises, status for children of members aged 13-21. It allowed them every club perk (except the right to vote) and they could seek full membership by 22. In practice, many such memberships were expedited ahead of general applicants, who faced 30-year waiting periods and non-refundable registration fees of Rs 20 lakh (the club collected Rs 44 crore from this).

Takeaways

- **Govt sends eviction notice to Gymkhana, cites 'public security needs'**
- **Gymkhana Club had been in trouble since 2017 when the corporate affairs ministry got on its case**

In April 2020, the MCA filed an application through the National Company Law Tribunal (NCLT) seeking to remove the club's elected management, citing Sections 241 and 242 of the Companies Act (relief from corporate oppression and mismanagement). The petition also cited complaints made by senior officials to establish the club's arbitrary functioning—including one by MCA director-general Navrang Saini, who was agitated over the retrospective revision of registration fees by the club.

The NCLT also charged that the club, which had been allotted the prime land for promoting sports, spent less than 3 per cent of its budget on sporting activities. Instead, the NCLT lawyers claimed that 30 per cent of the revenues was spent on acquiring "wine, liquor and cigarettes", turning the "*vyayamshala* (sports centre) into a *madhushala* (bar)".

The NCLT sacked the elected body in 2022 and put a 15-member govern-